

Equivalent Citations

citation codes .

PRASOON POLEY v. THE REVENUE DIVISIONAL OFFICER

Kerala High Court (Jun 23, 2023)

CASE NO.

WP(C) 7583/2023

DISPOSITION

NA

JUDGES

- JUSTICE GOPINATH P.

ATTORNEY

**IN THE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT**

THE HONOURABLE MR. JUSTICE GOPINATH P.

FRIDAY, THE 23RD DAY OF JUNE 2023 / 2ND ASHADHA, 1945

WP(C) NO. 7515 OF 2023

PETITIONER:

JACOB JOY,

AGED 31 YEARS,

S/O JOY, VETTIKKANAKKUDY HOUSE, KARATTUPALLIKKARA,

PERUMBAVOOR P.O, PERUMBAVOOR VILLAGE, KUNNATHUNADU

TALUK, ERNAKULAM DISTRICT - 683 542.

BY ADVS.

ANISH PAUL

K.V.SURESH KUMAR

SHIBU THOMAS (NILAMBUR)

RESPONDENTS:

1 THE REVENUE DIVISIONAL OFFICER,

REVENUE DIVISIONAL OFFICE, MINI CIVIL STATION,

MUDAVOOR P.O, MUVATTUPUZHA,

ERNAKULAM DISTRICT - 686 669.

2 THE TAHSILDAR,

KUNNATHUNADU TALUK, TALUK OFFICE, PERUMBAVOOR,

PERUMBAVOOR P.O, ERNAKULAM DISTRICT - 683 542.

3 THE VILLAGE OFFICER,

PERUMBAVOOR VILLAGE OFFICE, PERUMBAVOOR P.O,

ERNAKULAM DISTRICT - 683 542.

BY SMT.PREETHA.K.K, SR.GP

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON
23.06.2023, ALONG WITH WP(C).7583/2023, THE COURT ON THE SAME DAY
DELIVERED THE FOLLOWING:

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE GOPINATH P.

FRIDAY, THE 23RD DAY OF JUNE 2023 / 2ND ASHADHA, 1945

WP(C) NO. 7583 OF 2023

PETITIONER:

PRASOON POLEY,

AGED 35 YEARS,

S/O POLEY, PUTHUSSERY HOUSE, ALLAPRA, VENGOLA P.O,

VENGOLA VILLAGE, KUNNATHUNADU TALUK,

ERNAKULAM DISTRICT - 683 556.

BY ADVS.

ANISH PAUL

K.V.SURESH KUMAR

SHIBU THOMAS (NILAMBUR)

RESPONDENTS:

1 THE REVENUE DIVISIONAL OFFICER,

REVENUE DIVISIONAL OFFICE, MINI CIVIL STATION,

MUDAVOOR P.O, MUVATTUPUZHA,

ERNAKULAM DISTRICT - 686 669.

2 THE TAHSILDAR,

KUNNATHUNADU TALUK, TALUK OFFICE, PERUMBAVOOR,

PERUMBAVOOR P.O, ERNAKULAM DISTRICT - 683 542.

3 THE VILLAGE OFFICER,

PERUMBAVOOR VILLAGE OFFICE, PERUMBAVOOR P.O,

ERNAKULAM DISTRICT - 683 542.

BY SMT.PREETHA.K.K, SR.G.P

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR

ADMISSION ON 23.06.2023, ALONG WITH WP(C).7515/2023, THE

COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

JUDGMENT

The petitioners in these cases purchased properties lying adjacent to each other through separate registered documents. The petitioners have approached this Court being aggrieved by the fact that mutation has not been effected and land tax has not been accepted from the petitioners on the ground that the properties, which are subject matter of these cases have been converted contrary to the provisions contained in the Kerala Conservation of Paddy Land and Wetland Act, 2008 ('the Act' for short).

2. The learned Government Pleader, on instructions would submit that mutation was not effected on account of the fact that the lands, which are clearly falling within the purview of the Act have been converted without obtaining any permission from the authorities concerned. It is submitted that in such circumstances, it was not possible to effect mutation in respect of the properties purchased by the petitioners in these cases.

3. The learned counsel appearing for the petitioners would rely on the judgment of this Court in Rappai and **Another v. State of Kerala and Others** [2014 KHC 5041] to contend that the mere fact that the *property* , which is sought to be mutated is land falling

within the purview of the Act cannot be a ground to refuse mutation etc. In Rappai and Another (supra), a learned Judge of this Court took the view that the mere fact that the lands in question are subject matter of the proceedings under the Act cannot be a ground to refuse possession certificate. I see no reason to take a different view in the facts of this case. There is no law that lands coming under the purview of the Act cannot be sold. If the petitioners have purchased properties, which are subject matter of the provisions of the Act, mutation can be effected in favour of the petitioners and land tax can be accepted from them clearly indicating that the lands in question are paddy lands or wet lands as the case may be and subject to the provisions of the Act. If the petitioners or the predecessors in interest have illegally converted the land or any part of it, it is also open to the authorities to initiate action in accordance with the law. However, that cannot be a ground to refuse mutation and to refuse acceptance of land tax from the petitioners.

4. Therefore, these writ petitions are disposed of directing that the competent among the respondents shall effect mutation of the properties subject to compliance with usual formalities without in any manner being influenced by the fact that the properties in question are within the purview of the Act and have been illegally

converted. It is made clear that mutation and acceptance of land tax will always be subject to any proceedings that have been initiated or are proposed to be initiated under the provisions of the Act and that it will be open to the authorities to indicate in any certificate that may be issued to the petitioners that the properties are subject matter of proceedings under the Act. All contentions of the petitioners that the provisions of the Act do not apply are left open to be considered in any proceedings that are pending or may be initiated. Steps for effecting mutation and acceptance of land tax shall be completed, within a period of one month from the date of receipt of a certified copy of this judgment.

Sd/-

GOPINATH P.

JUDGE

DK

WITH TYPED COPY.

Exhibit P8 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO. 23/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF THE PETITIONER'S *PROPERTY* IN SURVEY NO.59

WITH TYPED COPY.

Exhibit P9 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.24/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.60

WITH TYPED COPY.

Exhibit P10 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO. 25/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.62

WITH TYPED COPY.

Exhibit P11 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.26/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.63

WITH TYPED COPY.

Exhibit P12 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.27/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.65

WITH TYPED COPY.

Exhibit P13 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.28/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.66

WITH TYPED COPY.

Exhibit P14 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.29/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.67

WITH TYPED COPY.

Exhibit P15 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING NO.30/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE

PETITIONER'S *PROPERTY* IN SURVEY NO.79
WITH TYPED COPY.

Exhibit P16 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.31/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.85
WITH TYPED COPY.

Exhibit P17 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.32/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.90
WITH TYPED COPY.

Exhibit P18 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.33/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.91
WITH TYPED COPY.

Exhibit P19 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.34/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.92
WITH TYPED COPY.

Exhibit P20 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.35/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.96
WITH TYPED COPY.

Exhibit P21 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.36/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.97
WITH TYPED COPY.

Exhibit P22 TRUE COPY OF THE RECEIPT DATED 14.03.2023 BEARING
NO.37/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.2
WITH TYPED COPY.

10.03.2023 BEARING NO. 3/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF THE
PETITIONER'S *PROPERTY* IN SURVEY NO.40
WITH TYPED COPY

Exhibit P9 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.4/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.41
WITH TYPED COPY

Exhibit P10 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.
5/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.42
WITH TYPED COPY

Exhibit P11 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.6/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.43
WITH TYPED COPY

Exhibit P12 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.7/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.48
WITH TYPED COPY

Exhibit P13 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.8/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.49
WITH TYPED COPY.

Exhibit P14 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.9/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.52
WITH TYPED COPY

Exhibit P15 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.10/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF
PETITIONER'S *PROPERTY* IN SURVEY NO.53
WITH TYPED COPY

Exhibit P16 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.11/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.54
WITH TYPED COPY.

Exhibit **P17 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.12/2023/1471119**
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.55
WITH TYPED COPY.

Exhibit P18 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.13/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.56/1
WITH TYPED COPY.

Exhibit P19 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.14/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.56/2
WITH TYPED COPY.

Exhibit **P20 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.15/2023/1471119**
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.56/3
WITH TYPED COPY.

Exhibit **P21 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.16/2023/1471119**
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.58
WITH TYPED COPY.

Exhibit P22 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.17/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF PETITIONER'S *PROPERTY* IN SURVEY NO.69
WITH TYPED COPY.

Exhibit P23 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING NO.18/2023/1471119
ISSUED TO THE PETITIONER REGARDING THE APPLICATION FOR MUTATION OF

WITH TYPED COPY.

Exhibit P24 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.19/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF

PETITIONER'S *PROPERTY* IN SURVEY NO.74

WITH TYPED COPY

Exhibit P25 TRUE COPY OF THE RECEIPT DATED 11.03.2023 BEARING
NO.20/2023/1471119

ISSUED TO THE PETITIONER REGARDING THE
APPLICATION FOR MUTATION OF

PETITIONER'S *PROPERTY* IN SURVEY NO.75

WITH TYPED COPY.